

25STCV04083 25STCV04083

County: los-angeles

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Case Number: 25STCV04083 Hearing Date: July 17, 2026 Dept: 406

JOSE A. MONROY FERREYRA,

Plaintiff,

v.

BMW OF NORTH AMERICA,
LLC,

Defendant.

Case No.: 25STCV04083

Hearing Date: July 17, 2026

[TENTATIVE]

order RE:

plaintiff's motion to reopen discovery

BACKGROUND

On February 13, 2025, Plaintiff Jose

A. Monroy Ferreyra filed this action against Defendant BMW of North America, LLC, asserting violations of the Song-Beverly Act.

On May 19, 2026, the Court granted

Plaintiff's ex parte application to continue trial, continuing the trial

to October 1, 2026. However, the Court held that “[d]iscovery is cut off.”

On June 17, 2026, Plaintiff filed the instant motion to reopen discovery. Defendant filed an opposition on July 6, 2026. Plaintiff filed reply on July 8, 2026.

DISCUSSION

“On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.” (Code Civ. Proc., § 2024.050(a).) The Court must consider the following factors: (1) the necessity and the reasons for the discovery; (2) the diligence or lack of diligence of the party seeking the discovery; (3) the likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party; and (4) the length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action. (Id., subd. (b).)

DISCUSSION

Plaintiff seeks to reopen discovery to permit the deposition of Defendant’s PMK and to conduct expert discovery.

The Court finds that the deposition of Defendant’s PMK is necessary for determining “Defendant’s failure to repurchase the subject vehicle and on whether that failure was willful for purposes of a civil penalty under the Song-Beverly Act.” (Enav Decl. ¶ 11.) Plaintiff acted diligently in attempting to obtain the PMK’s deposition. Plaintiff noticed the deposition in January 2026, but Defendant failed to produce the PMK. (Enav Reply Decl. ¶¶ 3-4.) Permitting a single PMK deposition will not delay the trial date or cause prejudice. The length of time between the prior June 2026 trial date and the current October 2026 trial date is small. Therefore, discovery is reopened for the limited purpose of deposing Defendant’s PMK.

However, Plaintiff fails to identify any expert discovery that needs to be completed and simply requests reopening

expert discovery in general. The Court does not find sufficient cause to do so. Moreover, Plaintiff does not explain why he could not complete expert discovery before the cutoff. Plaintiff presents no evidence of any attempts to conduct expert discovery before the cutoff. Therefore, expert discovery remains cut off.

CONCLUSION

Plaintiff's motion to reopen
discovery is GRANTED as to the PMK deposition only.